

(2) This Act shall apply to Wales subject to the following modifications, that is to say, two shillings and eleven pence halfpenny shall be substituted for two shillings and four pence halfpenny and two pence shall be substituted for three halfpence.

(3) This Act shall not (except as therein otherwise expressly provided) apply to Ireland.

6. This Act may be cited as the National Health Insurance Act, 1922, and shall be construed as one with the National Health Insurance Acts, 1911 to 1921, and those Acts and this Act may be cited together as the National Health Insurance Acts, 1911 to 1922.

Short title
and con-
struction.

CHAPTER 39.

An Act to make provision against the discharge or escape of oil into navigable waters.

[4th August 1922.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) If any oil is discharged, or allowed to escape whether directly or indirectly, into any waters to which this Act applies from any vessel or from any place on land or from any apparatus used for the purpose of transferring oil from or to any vessel to or from any other vessel (whether a vessel to which this Acts applies or not) or to or from any place, the owner or master of the vessel, from which the oil is discharged or allowed to escape, the occupier of the land, or the person having charge of the apparatus, as the case may be, shall be guilty of an offence and shall, in respect of each such offence, be liable on summary conviction to a fine not exceeding one hundred pounds:

Penalty for
discharge of
oil into
navigable
waters.

Provided that it shall be a good defence to proceedings for an offence under this section to prove—

(a) if the proceedings are against the owner or master of a vessel, that the escape of the oil was

due to, or that it was necessary to discharge the oil by reason of, the vessel being in collision or the happening to the vessel of some damage or accident, and also, if the proceedings are in respect of an escape of oil, that all reasonable means were taken by the master to prevent the escape; and

- (b) if the proceedings are against any other person and are in respect of an escape of oil, that all reasonable means were taken by that person to prevent the escape.

(2) It shall be lawful for a harbour authority to appoint a place within their jurisdiction at which the ballast water of vessels in which a cargo of petroleum spirit has been carried may be discharged, and where a place is so appointed any such ballast water may, notwithstanding anything in this section, be discharged at that place, but only at such times and subject to such conditions as the harbour authority may from time to time determine:

Provided that the foregoing provision shall not apply to ballast water containing oil other than petroleum spirit.

For the purposes of this subsection, the expression "petroleum spirit" means refined petroleum which is subject to rapid evaporation and which, when tested in the manner prescribed by the Petroleum Act, 1879, or any enactment amending that Act, gives off an inflammable vapour at a temperature of less than 73 degrees of Fahrenheit's thermometer.

42 & 43 Vict.
c. 47.

Prohibition
of transfer
of oil at
night.

2.—(1) It shall not be lawful during the hours between sunset and sunrise to transfer any oil to or from any vessel lying in any harbour unless notice of intention so to do has been given in accordance with the provisions of this section.

(2) If any oil is transferred to or from any vessel in contravention of the provisions of this section, the master of the vessel and, if the oil is transferred from or to premises on land, the occupier of the premises shall, in respect of each offence, be liable on summary conviction to a fine not exceeding twenty pounds.

(3) A notice for the purposes of this section must be given to the harbour master of the harbour in which the vessel is lying and shall be of no effect unless given

at least three hours and not more than ninety-six hours before the time at which the operation of transferring the oil commences :

Provided that, in the case of an operation to be performed at a place where such operations are frequently and regularly carried on, or in the case of a transfer of oil for fire brigade purposes, the notice may, instead of being a notice given to the harbour master within the time hereinbefore provided, be a general notice given to the harbour master to the effect that such operations will during such period not exceeding twelve months from the date of notice, as may be specified therein, be carried on between sunset and sunrise.

3.—(1) There shall be kept in the case of every vessel a record, in such form as the Board of Trade may prescribe, of all operations in connection with the transfer of oil to and from the vessel.

Keeping of records with respect to transfer of oil.

(2) The record required to be kept under this section shall, in the case of a barge, be kept, so far as relates to the transfer of oil to the barge, by the person supplying the oil, and, so far as relates to the transfer of oil from the barge, by the person to whom the oil is delivered, and shall, in every other case, be kept by the master of the vessel.

(3) Every record kept under this section may at all reasonable times be inspected by the harbour master of the harbour in which the vessel is or, in the case of a barge, was at the time of transfer or by any person duly authorised in that behalf by the Board of Trade, the Minister of Agriculture and Fisheries, the Fishery Board for Scotland, or the Ministry of Commerce for Northern Ireland.

(4) If any person required to keep a record under this section fails to keep such a record or to make proper entries therein, or to produce the record on a demand in that behalf made by any person authorised to inspect it, he shall, in respect of each offence, be liable on summary conviction to a fine not exceeding fifty pounds, and if any such person makes any entry in the record which is to his knowledge false or in any material particular misleading, or wilfully fails to make any entry in the record, he shall, in respect of each offence, be liable on summary conviction to a fine not exceeding one hundred pounds.

Liquid contained in spaces used for carriage of oil to be deemed oil for purposes of Act.

4.—(1) Where oil has been contained in any tanks or other spaces in a vessel, any liquid discharged or allowed to escape from those tanks or spaces shall, unless it is proved that the tanks or spaces have been cleaned of oil, or that the liquid has been freed from oil by means of a separating apparatus, be deemed to be oil within the meaning of this Act.

(2) In the case of proceedings against any person other than the master of a vessel, evidence of the matters aforesaid may be given by means of a certificate signed by the master, and, if the master of a vessel gives any certificate under this section which is to his knowledge false or in any material particular misleading, he shall, on summary conviction, be liable in respect of each offence to a fine not exceeding fifty pounds.

(3) In this section the expression “master of a vessel” means the person named as the master in the agreement with the crew.

Application of fines.

5. Where any person is convicted of the offence of having in contravention of the provisions of this Act discharged or allowed to escape any oil into any waters to which this Act applies, the court before which he is convicted may, on the application of the prosecutor, order that the whole or any part of the fine imposed in respect of the offence shall be paid to such person as the court may direct for the purpose of being applied by him in or towards meeting any expenses incurred or to be incurred in the removal of the oil so discharged or allowed to escape.

Power to inspect premises and vessels.

6.—(1) The Board of Trade may, if they think fit, either at their own instance or at the instance of the Minister of Agriculture and Fisheries, the Fishery Board for Scotland, or the Ministry of Commerce for Northern Ireland, or of any local authority, appoint any officer of the Board of Trade or other competent and independent person to inspect any vessel being in any waters to which this Act applies, and any person so appointed or the harbour master of the harbour in which the vessel is may at all reasonable times enter upon the vessel and examine the measures adopted to prevent the escape of oil.

(2) If it is represented to the Board of Trade by the Minister of Agriculture and Fisheries, the Fishery Board for Scotland, or the Ministry of Commerce for

Northern Ireland, or by any local or harbour authority, that there is reason to suspect that oil is escaping or has escaped, whether directly or indirectly, into waters to which this Act applies from premises adjacent to or in the neighbourhood of those waters, the Board of Trade may, if they think fit, appoint any officer of the Board or other competent and independent person to inspect the premises, and any officer or person so appointed may at all reasonable times enter upon and inspect the premises.

(3) If any person obstructs or interferes with any person authorised to enter on any premises or vessels under this section, he shall, on summary conviction, be liable in respect of each offence to a fine not exceeding ten pounds.

7.—(1) Where an offence under this Act is alleged to have been committed by the master of a vessel who thereafter departs from Great Britain and Northern Ireland before the expiration of the period within which proceedings for the offence might have been instituted against him, proceedings for the offence may, notwithstanding anything in the Summary Jurisdiction Acts, be instituted against him at any time within two months next after the date on which he first returns to Great Britain or Northern Ireland. Legal proceedings.

(2) For the purpose of any proceedings for an offence under this Act, the offence may be treated as having been committed either at the place at which it was actually committed or at any place in which the person charged with the offence may at any time be.

(3) Where a fine imposed by any court in proceedings against the owner or master of a vessel for an offence under this Act is not paid at the time and in manner ordered by the court, the court shall, without prejudice to any other powers of the court for enforcing payment, have power to direct the amount remaining unpaid to be levied by distress or poinding and sale of the vessel, her tackle, furniture and apparel.

(4) Proceedings for an offence under this Act shall not be instituted in the case of an offence committed in or in relation to the waters of a harbour except by the harbour authority, and in any other case except by a person authorised in that behalf by special or general directions of the Board of Trade, the Minister of Agriculture and Fisheries, or the Ministry of Commerce

for Northern Ireland: Provided that nothing in this subsection shall apply to the institution of proceedings in Scotland.

Interpreta-
tion and
application.

8.—(1) In this Act, unless the context otherwise requires—

The expression “oil” means oil of any description, and includes spirit produced from oil and oil mixed with water :

The expression “harbour” means any harbour whether natural or artificial, and includes any port, dock, estuary or arm of the sea, any river or canal navigable by sea-going vessels, and any waters in which sea-going vessels can obtain shelter or ship or unship goods or passengers :

The expression “harbour authority” includes all persons or bodies of persons, corporate or unincorporate, being proprietors of or entrusted with the duty or invested with the power of constructing, improving, managing, regulating or maintaining a harbour :

The expression “harbour master” includes any person appointed by a harbour authority for the purpose of enforcing the provisions of this Act :

The expression “master” when used in relation to any vessel means the person having the command or charge of the vessel for the time being :

57 & 58 Vict.
c. 60.

The expression “vessel” has the same meaning as in the Merchant Shipping Act, 1894 :

The expression “barge” includes lighter or like vessel :

The expression “transfer” in relation to oil means transfer in bulk :

The expression “local authority” means, in the application of this Act to England, the council of a county or county borough or urban or rural district or a port sanitary authority, in the application of this Act to Scotland the council of a county or burgh or a port local authority, and, in the application of this Act to Northern Ireland, the council of a county, county borough or county district, or a port sanitary authority.

(2) This Act shall apply to any vessel which is capable of carrying in bulk, whether for cargo or for bunker purposes, more than twenty-five tons of oil, or which, though not so capable is constructed or fitted to carry in bulk as aforesaid more than five tons of oil in any one space or container.

(3) The waters to which this Act applies are the territorial waters of Great Britain and Northern Ireland and the waters of harbours therein.

(4) For the purposes of section six of the Government of Ireland Act, 1920, this Act in its application to Northern Ireland shall be deemed to be an Act passed before the appointed day. 10 & 11
Geo. 5. c. 67.

9.—(1) This Act may be cited as the Oil in Navigable Waters Act, 1922. Short title
and saving.

(2) The provisions of this Act shall be in addition to and not in derogation of or substitution for any provisions for the protection of a harbour as defined in this Act contained in any existing Act or re-enactment thereof or in any order, rule, regulation, or bye-law made or to be made under such Act or any re-enactment thereof.

(3) This Act shall come into operation on the first day of January, nineteen hundred and twenty-three.

. CHAPTER 40.

An Act to confirm an agreement between the Mayor and Commonalty and Citizens of the City of London and the President of the Air Council in relation to the acquisition of certain lands in the county of Surrey, and for purposes in connection therewith. [4th August 1922.]

WHEREAS an Agreement (in this Act referred to as “the agreement”) was made on the seventeenth day of November, one thousand nine hundred and twenty-one, between the Mayor and Commonalty and Citizens of the City of London (in this Act and the agreement referred to as “the Corporation”) of the one part and the President of the Air Council (in this Act and the agreement referred to as “the President”) of the other